

CALLS, stated that it included the necessary information to ensure compliance with the requirements of the Regulation. The script was designed to inform the contacted individuals about the purpose of the call, the identity of the caller, and the possibility of exercising their rights under Articles 15, 17, and 21 of the Regulation.

2. THE LEGAL FRAMEWORK

The processing of personal data must comply with the principles established by the Regulation, particularly concerning the lawfulness, fairness, and transparency of the processing. The consent of the data subject is a fundamental requirement for the legitimacy of the processing, especially when the data subject is contacted for promotional purposes.

3. ASSESSMENT OF THE COMPLAINT

In light of the above, the Authority must assess whether the processing of the complainant's personal data by Comparafacile was carried out in compliance with the applicable legal provisions. The Authority will evaluate the validity of the consent provided by the complainant to the data provider and whether the necessary checks were conducted regarding the registration in the Public Opposition Register.

4. CONCLUSIONS

Based on the findings, the Authority will determine whether Comparafacile has violated the provisions of the Regulation and the Code regarding the processing of personal data. If violations are identified, appropriate measures will be taken to ensure compliance and protect the rights of the data subject.

5. ORDER

The Authority orders Comparafacile to provide further clarification regarding the processing of personal data of the complainant and to demonstrate compliance with the legal obligations set forth in the Regulation and the Code.

This decision is made in accordance with the powers conferred upon the Authority by the Regulation and the Code, and it will be communicated to the parties involved.

Rome, 18 July 2023

IL GARANTE PER LA PROTEZIONE DEI DATI PERSONALI

[Signature]

Prof. Pasquale Stanzione

President

promotional calls, stated that it sends, upon the user's request, if interested, an SMS containing the link to the so-called "landing page," where it is possible to consult the privacy policy.

2. THE CONTESTATION OF VIOLATIONS

With a note dated April 19, 2023 (prot. no. 65411/23), the Company was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures referred to in Article 58, paragraph 2, of the Regulation, and, first and foremost, it was recognized that Comparafacile holds the role of an independent data controller regarding the processing of the lists acquired from XX, as the activities of data extraction and duplication appear aimed at conducting promotional campaigns for its own products and services, resulting in the enrichment of the corporate database. Moreover, the use of data provided by XX in the processing in question has resulted - as declared by the Company - in the "subscription of n. 1686 contracts."

Therefore, Comparafacile has been attributed the alleged violations of the following provisions:

2.1. Articles 12, 13, and 14 of the Regulation for failing to provide the information during promotional contacts, subordinating its viewing, through the sending of an SMS, to the expression of interest by users in the services of Comparafacile;

2.2. Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7 of the Regulation and Article 130 of the Code, for having made promotional calls without the informed consent of the interested parties, having not produced suitable documentation to prove its acquisition both by the provider XX and by itself;

2.3. Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7 of the Regulation for having processed personal data collected through the so-called "landing page" in the absence of free and specific consent for the different purposes of processing. In this regard, the Office has observed that, at the time of user data registration on the so-called "landing page," generic consent is requested (1. "for the purposes expressed in the Privacy Policy") which does not facilitate the understanding of the processing to which it refers; in fact, while specific consents are required for marketing and communication of data to third parties (2. "for marketing purposes"; 3. "to receive commercial communications from partners of Comparafacile, through the sharing of data with third parties"), no authorization for the processing of personal data appears to be requested for profiling (as referred to in point E of the aforementioned information), thus it can be considered that the aforementioned generic consent may combine, in a unitary and indivisible formula, the different contractual purpose (provision of services referred to in point A of the privacy policy) with the further purpose of profiling, thereby determining a coercion of the will of the interested party. Furthermore, the formulation referred to in point 3 (cit. "I consent to receive commercial communications from partners of Comparafacile, through the sharing of data with third parties") does not clarify whether the personal data, thus collected, are used for promotional activities of third parties (to whom they are communicated) or in the interest of Comparafacile itself (which acquires them). Even in the privacy policy, the two distinct purposes of processing (communication to third parties and promotional activity of the Company) seem to coexist (see point D of the aforementioned information).

2.4. Articles 12, paragraphs 2 and 3, 15, 17, and 21, paragraph 2, of the Regulation for failing to respond to the request to exercise rights made by the interested party and for not having promptly registered the related opposition;

2.5. Article 1, paragraph 11, of Law No. 5/2018, in relation to the subsequent paragraph 12 and Article 130, paragraph 3, of the Code, for having carried out telemarketing activities without having consulted the Register of Oppositions on a monthly basis or in any case before each promotional campaign;

2.6. Articles 5, paragraph 2, 24, paragraphs 1 and 2, and 25 of the Regulation for failing to adopt adequate organizational measures aimed at tracking processing activities and proving compliance with the regulations.

Furthermore, with the same communication dated April 19, 2023, the Company was invited to communicate how many records were registered in the corporate systems following the completion of the aforementioned online registration form for the "landing page."

3. DEFENSIVE OBSERVATIONS AND EVALUATIONS OF THE AUTHORITY

3.1. Defensive Memorandum

The Company, in exercising its right of defense, submitted a memorandum on May 19, 2023, and was heard by the Authority on June 14, 2023, producing, on that occasion, further supplementary documentation, with which it requested the archiving of the procedure initiated against it or, in the alternative, the application of the sanction for minor violation as identified in the EDPB guidelines 4/2022. From the defensive arguments, to which full reference is made, the following emerged.

3.1.1. The complainant's data was acquired during the registration to an online data collection form - https://www.listeprofilate.com/it/tr_iphone/privacy.html - associated with a prize competition attributable to XX, as the data controller. In the information provided by XX, the interested party was expressly informed that their personal data "will be used by the Data Controller solely for the purpose of verifying the identity of the User [...] thus avoiding possible fraud or abuse and contacting [the same user] for service reasons only." In relation to this processing, specific consent from the complainant was obtained, of which evidence has been produced, along with the...
screenshot of the formulations used for this purpose.

Additionally, the Company clarified that XX was authorized to process the data through third parties, whether they are data controllers (as in the case of Comparafacile in the activity of re-contacting and verifying the data) or independent controllers for their own purposes.

Therefore, Comparafacile disclaimed the role of data controller in the processing of data acquired from XX, having acted solely as a data processor, exclusively performing "data quality" activities aimed at a qualitative review of the provided lists and not for the enrichment of the corporate database, nor for

conducting promotional campaigns for its own services. In confirmation of this, "no marketing campaign was conducted in the context of the first contact, and only when the user expressed interest in possible re-contact activities, were they directed to the Company's landing page." Thus, not having acted as a data controller, the Company would not be subject to the obligations related to ex ante informational duties nor to the control of users in the Public Register of Oppositions, also due to the indemnity granted to it by the Provider.

In any case, the information from Comparafacile was provided at the time of sending the SMS containing the link to the "landing page," a link that was sent by the Company following the expression of interest from users to receive commercial offers from it for which consent had already been granted to XX. It was not possible for Comparafacile to fulfill the informational obligation at a time prior to the first contact (given the large audience of the contact recipients) and "the consents collected through the subsequent activity of redirecting the user to the Company's landing page enabled the latter to carry out the actual processing."

Finally, the Company reported that it had collected through the online registration form for the "landing page" 1,100 records that generated a modest revenue of €79,200.00.

3.1.2. Regarding the complaint mentioned in point 2.5 of this provision, the Company, confirming the difficulties encountered in accessing the Public Register of Oppositions before contacting the complainant, stated that the registration of the complainant's number in the aforementioned Register occurred only on December 15, 2022, thus after the contacts made by Comparafacile and complained about in the complaint.

3.1.3. Regarding the lack of response to the request for the exercise of the rights of the data subject, the Company declared that it had acted in good faith and without intent to deceive.

3.1.4. Concerning the processing of data carried out via the website and the consent not properly requested for profiling, the Company clarified that "the only purpose indicated in the information and for which consent was expressly required, in addition to those collected on the landing page, was related to the profiling activity that [...] the Company does not carry out."

Furthermore, the Company raised an objection to the Authority's remark regarding the acquisition of consent that tends to merge two distinct purposes (Comparafacile's promotional activity and communication to third parties), arguing that two specific authorizations are required for such processing (one for marketing activity – consent no. 2 – and the other for communication to third-party partners different from the Company – consent no. 3). Moreover, the Company specified that it has "never communicated nor does it communicate the data collected to third parties."

3.2. Legal Assessments

With reference to the factual profiles highlighted above, also based on the statements of the Company, for which the declarant is responsible pursuant to Article 168 of the Code, the following legal assessments are formulated.

3.2.1. The main argument presented by the Company in defense of its position through the reference to the exclusive activity of data quality carried out as a data processor of the data acquired from XX cannot be considered shareable as it does not correspond to the actual execution of the conduct. From the analysis of the information provided by XX at the time of registration on the online form (https://www.listeprofilate.com/it/tr_iphone/privacy.html), it emerged, first of all, that the activity of contacting users participating in the prize competition, in order to verify their identity, would not be provided for third parties (such as Comparafacile) to whom the data may be communicated, but can be carried out by the data controller (Provider) "for service reasons only."

Furthermore, in point 2 of the aforementioned information, titled "Further purposes of processing: communication of data to the Controller's Partners," it is clearly indicated as an independent controller the subject that receives data from XX to carry out its own marketing activities, specifying that "Once the transfer has taken place, it will be the responsibility of the Controller's Partner to provide Users [...] with all the information required by Article 14 of the Regulation."

Therefore, the aforementioned data quality activity cannot be invoked by the Company as the records came into the possession of the latter in exchange for compensation to the Provider, and the telephone contacts are preliminary to conducting promotional campaigns for Comparafacile(1) and not instead for verifying the accuracy of XX's data for participation in the prize competition, resulting in the

enrichment of its database (as evidenced by the above-mentioned 1,686 contracts signed following telephone contacts).

In this context, XX, the owner of the database, acting as an independent data controller, since the activities carried out by the Provider (collection, storage, and transmission to third parties of data) are prior to and entirely independent of the processing carried out by Comparafacile. It follows that the Company - having concretely determined the purpose for which the processing was implemented (the promotion of its services), the channel used for this purpose, thereby also defining the essential means, and having selected the supplier of the lists in the market - is to be considered the data controller, pursuant to Article 4 of the Regulation (see provision of October 26, 2017, web doc no. 7320903; provision of January 15, 2020, web doc no. 9256486; provision of November 25, 2021, web doc no. 9736961; provision of November 25, 2021, web doc no. 9737185; provision of December 2, 2021, web doc no. 9731682; provision of December 2, 2021, web doc no. 9731664; provision of December 16, 2021, web doc no. 9742704).

Therefore, Comparafacile is directly accountable for both the obligations imposed by the legislation on personal data protection and the responsibility for the alleged violations found, both due to the already highlighted legal status of data controller that the Company has assumed, and because the contractual provision of indemnity clauses invoked by the Company in the response of February 18, 2023, is only relevant to the contractual relationships between the parties and not with respect to the guarantees to be provided to the data subject regarding the processing of their data, nor, even less, with reference to the distribution of responsibilities within the processing.

That said, it has not been evidenced in the documents the informational fulfillment on the part of the Company at the time of the first contact, pursuant to Article 14 of the Regulation, since the acknowledgment of the privacy notice was conditioned upon the expression of interest by users in the services of Comparafacile.

Moreover, a mechanism that forces the user to declare interest in the services of the Company in order to acquire all the information mandatorily provided for by Article 13 of the Regulation cannot be considered suitable, and therefore legitimate, thus also violating the requirement of easy accessibility of information underlying Article 12 of the Regulation, in the broader context of the fundamental principle of transparency (see provision of May 27, 2021, web doc no. 9689375; see also provision of January 15, 2020).

Therefore, it is deemed necessary to confirm what was observed in the initiation act of the procedure regarding the existence of a violation of Articles 12, 13, and 14 of the Regulation due to the absence of the issuance of a suitable notice during promotional contacts, not only in relation to the case of the complaint but in the overall context of the processing carried out by Comparafacile.

It follows that in the absence of information on the processing, the expression of will by the data subject is irreparably flawed and unsuitable to constitute a condition of lawfulness for the processing itself. Therefore, the consent for promotional purposes requested during the first phone call to the data subject, not being informed, cannot be considered a valid prerequisite for the marketing activity of the Company. Nor does it seem that the Company, at the time of contact with the data subject, verified the original consent obtained from XX for receiving commercial offers from third parties to whom the data would have been communicated, since the request for a callback for the marketing activities of Comparafacile would not be justified if there was knowledge of a prior express authorization in this regard. Furthermore, from the examination of the private deed perfected with XX, it emerged that Comparafacile is not burdened with the obligation to verify the validity of the list that came into its possession and the related consents obtained during the registration phase. This would confirm the realization of the described processing without the Company having verified the necessary legal basis for the commercial activity. Again, it must be noted that the indemnity clause with which XX intended to exempt Comparafacile from the verification of the correct acquisition of consents is irrelevant.

Therefore, the responsibility of Comparafacile regarding the violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7 of the Regulation as well as Article 130 of the Code must be confirmed.

3.2.2. With reference to the registration of the data subject's number in the Public Register of Oppositions - which the Company claims occurred only on December 15, 2022, thus after the complained contacts - it is preliminarily noted that, from precise checks carried out by the Office, the complainant's number was found to be registered since August 2, 2022, and repeatedly renewed until December 15, 2022. That duly clarified, even if at the time of the complained contacts the registration of the data subject's number was temporarily suspended, the Company should have submitted the list of records that had now passed into its possession to the verification of the Public Register of Oppositions and exclude from the list of contactable subjects those who had correctly formulated their opposition. It appears instead that the verification with the RPO was not carried out, and the circumstance that this lack of verification was due to technical issues related to the Company's registration in the list of operators allowed to consult the Register is irrelevant, nor does it matter that the opposition to the processing of the complainant's number was not registered at that time. In fact, registration with the RPO and consultation of the same must be considered as preconditions for... the necessity of obtaining a specific and informed consent from the data subjects prior to any such activity, in accordance with articles 6, 7, and 12 of the Regulation, as well as article 130 of the Code.

5. FINAL REMARKS

It is important to highlight that the violations identified above reflect a serious disregard for the principles of data protection and the rights of individuals as established by the Regulation and the Code. The need for compliance with these legal frameworks is paramount to ensure the protection of personal data and to maintain trust in the use of telemarketing practices.

The Authority will continue to monitor the situation and may take further action if necessary to ensure adherence to the legal obligations set forth in the Regulation and the Code. The Company is encouraged to implement appropriate measures to rectify the identified violations and to prevent future occurrences.

This decision is made in accordance with the powers granted to the Authority under the applicable laws and regulations, and it is intended to serve as a reminder of the importance of compliance with data protection standards.

pursuant to Article 58, paragraph 2, letter d), of the Regulation, to implement all necessary measures to ensure compliance with the provisions regarding the protection of personal data, namely, among others:

- to provide an appropriate notice to the data subjects, including all the elements that are mandatorily required by Articles 12 and 13 of the Regulation;
 - to identify an appropriate legal basis for the processing in question, which, at this stage, appears to be realizable through the acquisition of informed, free, specific, documented, and unequivocal consent for each of the specific purposes pursued (Articles 6 and 7 of the Regulation);
 - to implement all necessary organizational measures to facilitate the exercise of the rights provided for by the regulations on the protection of personal data and to satisfy, without unjustified delay, the related requests, including the right to object that may be raised "at any time" by the data subject (Article 21, paragraph 2, of the Regulation);
 - to adopt appropriate procedures aimed at tracking processing activities within the supply chain and demonstrating compliance with the rules on the protection of personal data, with particular reference to those applicable to the sending of commercial communications (Articles 6, 7, 13, 14 of the Regulation and Article 130 of the Code);
- d) with regard to the processing already carried out, it is believed that the conditions for the application of an administrative pecuniary sanction pursuant to Articles 58, paragraph 2, letter i) and 83, paragraphs 4 and 5, of the Regulation exist.

5. ORDER FOR INJUNCTION FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

The confirmed violations above require the adoption of an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Comparafacile of the administrative pecuniary sanction provided for by Article 83, paragraphs 4 and 5, of the Regulation.

However, given that various provisions of the Regulation and the Code have been violated in relation to connected processing carried out by the Company for marketing purposes, Article 83, paragraph 3, of the Regulation is deemed applicable, according to which, "if, in relation to the same processing or connected processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," thus absorbing the less serious violations. Specifically, the aforementioned violations - also concerning the exercise of the rights of the data subjects - fall, pursuant to Article 83, paragraph 3, of the same Regulation, within the scope of the most serious violation, with the consequent application of the sanction provided for in Article 83, paragraph 5, of the Regulation.

For the determination of the amount of the sanction, which must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1), it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation.

The circumstances to be considered in this case must include, under the aspect of aggravating factors:

1. the high number of subjects involved in the contested processing: 40,000 records acquired from XX; 1,686 contracts signed with the aforementioned records communicated by the Provider, for which the Company has not verified the legal grounds that would legitimize the processing; 1,100 records registered on the online form present on the "landing page" which include data for which specific consent for profiling has not been obtained, nor, according to the Company, is any processing currently underway (Article 83, paragraph 2, letter a);
2. the severity of the violations detected, particularly with reference to the absence of random checks of the numbers to be contacted provided by the partner, the inadequate management of the right to object of the data subjects, as well as the inadequacy of the information provided on the website and its lack during promotional calls (Article 83, paragraph 2, letter a);
3. the negligent nature of the conduct, given that the Company's presence in the market for many years should have allowed it to acquire a sufficient background of experience and expertise to adopt more compliant fundamental choices with the regulatory provisions (Article 83, paragraph 2, letter b);
4. the inconsistency of the Company's conduct with respect to the substantial regulatory activity of the Authority regarding marketing, particularly with reference to information and consent (Article 83, paragraph 2, letter k);
5. the overall assessment of the Company's economic capacity, taking into account the latest available corporate turnover (Article 83, paragraph 2, letter k).

As mitigating factors, it is deemed necessary to consider:

1. the absence of previous proceedings initiated against the Company (Article 83, paragraph 2, letter e);
2. the degree of cooperation in the interaction with the supervisory Authority that made it easier to carry out the investigation activities (Article 83, paragraph 2, letter f).

Based on the overall elements indicated above, in application of the aforementioned principles of effectiveness, proportionality, and dissuasiveness referred to in Article 83, paragraph 1, of the Regulation, also taking into account the necessary balancing between the rights of the data subjects and the freedom of enterprise, in order to limit the economic impact of the sanction on organizational, functional, and employment needs.

of the Company, it is deemed that the administrative sanction of payment of an amount of €40,000.00 (forty thousand/00), equal to 0.2% of the maximum penalty, should be applied to Comparafacile – also considering other similar cases.

In the case at hand, it is also considered that the accessory sanction of publication of this provision on the Garante's website should be applied, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Garante Regulation No. 1/2019, taking into account the subject matter of the investigation, namely the phenomenon of unwanted marketing, regarding which this Authority has adopted numerous provisions both of a general nature and directed at specific data controllers, and on which user attention is high.

It is reminded that pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition provision on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied in administrative proceedings.

Finally, the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Garante, for the annotation of the violations identified herein in the Authority's internal register, as provided for by Article 57, paragraph 1, letter u) of the Regulation, are met.

ALL OF THE ABOVE CONSIDERED, THE GARANTE

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares unlawful, in the terms set out in the reasoning, the processing carried out by Compara Facile S.r.l., with registered office at Via Tivoli 8, 00156 Rome, VAT No. 15474891007, and consequently:

a) pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibits the processing of personal data collected through the website in the absence of appropriate consent from the data subjects for profiling activities, pursuant to Articles 6, 7, and 12 of the Regulation, as well as Article 130 of the Code, since this purpose, even though it has not been concretely pursued by the Company, has resulted in the collection of personal data without consent;

b) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders Comparafacile to promptly delete such data, except for those that must be retained for compliance with a legal obligation or for the defense of a right in judicial proceedings, as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;

c) in the event that the Company intends to direct promotional activities in the future towards telephone numbers provided by third parties, it prescribes, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to implement all necessary measures to ensure that they comply with the provisions on personal data protection, namely, among others:

- provide appropriate information to the data subjects, including all elements required by Articles 12 and 13 of the Regulation;
- identify an appropriate legal basis for the processing in question, which, at present, appears to be realizable through the acquisition of informed, free, specific, documented, and unequivocal consent for each of the specific purposes pursued (Articles 6 and 7 of the Regulation);
- implement all necessary organizational measures to facilitate the exercise of the rights provided for by the data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object that can be exercised "at any time" by the data subject (Article 21, paragraph 2, of the Regulation);
- adopt appropriate procedures to keep track of processing activities within the supply chain and to demonstrate compliance with the rules on personal data protection, with particular reference to those applicable to the sending of commercial communications (Articles 6, 7, 13, 14 of the Regulation and Article 130 of the Code);

d) pursuant to Article 157 of the Code, orders the Company to inform the Authority, within 30 days from the notification of this provision, of the initiatives taken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i), of the Regulation, Compara Facile S.r.l., represented by its legal representative, to pay the sum of €40,000.00 (forty thousand/00), as an administrative pecuniary sanction for the violations indicated in the reasoning; it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €40,000.00 (forty thousand/00) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with Article 27 of Law No. 689/1981;

DISPOSES

as an accessory sanction, pursuant to Article 166, paragraph 7, of the Code and Article 16 of the Garante Regulation No. 1/2019, the publication on the Garante's website of this provision and, pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an opposition to this provision may be proposed to the ordinary judicial authority, with an appeal filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, July 18, 2023

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei

(1) Regarding the telephone contact aimed at registering the interest or lack thereof of the contractor in the commercial offer, the Garante has clarified on several occasions that this type of call, aimed at obtaining consent for marketing activities, is to be considered "commercial communication," as established by the case law (Cass. civ., Sez. I, ord. April 26, 2021, No. 11019) which – in confirming the validity of the Authority's provision of June 22, 2016 No. 275 (doc. web 5255159) on the unlawfulness of calls for the "recovery of consent" from data subjects – highlighted that "The purpose to which the consent requested for processing is inextricably linked cannot fail to contribute to qualifying the processing itself, which is why the processing of the data subject's data to request consent for marketing purposes is itself processing for marketing purposes" (see also, in the same sense, the Guidelines on promotional activities and combating spam - July 4, 2013, doc. web No. 2542348).